



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

September 29, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 20224
(THIRD REVISION)

EXPIRATION DATE: 2026-08-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Axalta Coating Systems, LLC
Philadelphia, PA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of non-DOT specification bulk bins for the transportation in commerce of certain waste paints and paint related materials, Class 3, in metal or plastic pails, packed in roll-off bins, except as specified herein, for the transportation in commerce of the materials authorized by this special permit. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazard and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171- 180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.302(c) in that the special permit number is required to be marked on the package and 173.242 in that roll-off containers are not an authorized packaging except as specified herein.
5. BASIS: This special permit is based on the application of Axalta Coating Systems, LLC dated July 5, 2022, submitted in accordance with § 107.109.

Tracking Number: 2022074147

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Paint including paint, lacquer, enamel, stain, shellac solutions, varnish, polish, liquid filler and liquid lacquer base	3	UN1263	II, III
Paint related material including paint thinning, drying, removing, or reducing compound	3	UN1263	II, III

*In accordance with § 173.22, it is the shipper's responsibility to accurately classify the contents of the package. A single proper shipping name should be used when classifying the contents of the package.

7. SAFETY CONTROL MEASURES:

a. PACKAGING: The inner packagings are non-specification pails not exceeding 5 gallons containing non-flowing residues of hazardous materials. The pails do not have to be closed. The outer packaging is a roll-off bin not exceeding 30 cubic feet. The roll-off bin must be lined with a plastic liner to ensure no leakage and securely fastened closed with a tarp strapped on all sides.

b. OPERATIONAL CONTROLS:

(1) Transportation must be by an authorized and dedicated carrier.

(2) Transportation is only authorized from the waste generation facility to the environmental landfill waste treatment facility designated in the application.

(3) Roll-off bins must be marked with a UN ID marking of UN1263.

c. MARKING: Inner packagings and outer roll-off bins are exempt from the marking requirements of § 172.302(c).

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under

terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "W. Schoonover", is written over a light blue rectangular background.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: TG